

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 04/22/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1.	9:00 AM	CASE NUMBER:	C23-02438
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CASE NAME:	RYAN JONES VS. JAMES JEWELL
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*FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

<u>*TENTATIVE RULING:*</u>

This Case Management Conference (CMC) trails the hearing on the demurrer, Line 3. If the tentative ruling is not contested, then no appearance is required on April 22, 2026 and this CMC is continued to August 21, 2026 at 8:30 a.m. The Parties are ordered to file a case management conference statement.

2.	9:00 AM	CASE NUMBER:	C22-02557
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CASE NAME:	PRANAV MANOJ VS. DOES 1-25, INCLUSIVE
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*FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL THE HEARING ON MOTION FOR SUMMARY JUDGMENT
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FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trailed the hearing on the Motion for Summary Judgment filed by Defendant and Cross-Complainant City of Concord. That hearing is vacated. This CMC is continued to August 21, 2026 at 8:30 a.m.. The Parties are ordered to file a case management conference statement.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-02438

CASE NAME: RYAN JONES VS. JAMES JEWELL

HEARING ON DEMURRER TO: CROSS-COMPLAINT OF COMPASS CALIFORNIA, II INC. AND RUTH FRASSETTO

FILED BY: SWARTZ, ALANNA

TENTATIVE RULING:

Introduction

Before the Court is Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s (collectively referred to as "Vanguard") Demurrer to COMPASS CALIFORNIA, II, INC. and RUTH FRASSETTO's (collectively and hereinafter referred to "Compass") Cross Complaint. The Motion relates to the Compass Cross Complaint for failure to disclose and fraud related causes of action.

Vanguard Cross Defendants demurer to the second [Negligence], fourth [Equitable Indemnity], fifth [Contribution and Equitable Apportionment], sixth [Comparative Indemnity], and seventh [Declaratory Relief] causes of action.

For the reasons explained below, Cross-Defendants Alanna Swartz and Vanguard Properties, INC.'s Demurrer is **sustained with leave to amend in part and overruled in part. The Demurrer to the second cause of action for negligence is sustained with leave to amend. The Demurrer as the fourth, fifth, and sixth causes of action for Equitable Indemnity causes of action are overruled.**

Request for Judicial Notice

The Vanguard Cross Defendants request judicial notice of three documents. The first document is Plaintiffs Ryan Jones and Maureen Carroll's Complaint for Violation of Residential Building Standards; Fraud-Intentional Misrepresentation; Negligent Misrepresentation; Breach of Duty to Disclose; Rescission, Case No. C23-02438 ("Bee Complaint") filed on September 27, 2023. The second document is Plaintiffs Ryan Jones and Maureen Carroll's Complaint for Negligence (CCP §2079); Fraud-Intentional Misrepresentation; Negligent Misrepresentation; Breach of Duty to Disclose, Case No. C2-02483 ("Compass Complaint") filed on October 2, 2023. The third document is Cross-Complainants Compass California, II, INC. and Ruth Frassetto's Cross-Complaint for (1) Express Contractual Indemnity, (2) Negligence, (3) Breach of Contract, (4) Equitable Indemnity, (5) Contribution and Equitable Apportionment, (6) Comparative Indemnity, (7) Declaratory Relief, Case No. C23-02438 (Complaint) filed on August 28, 2025.

All three documents are filings in this consolidated matter, and under the Court grants all the **Vanguard Cross Defendants requests for judicial notice.**